

Opinion of SOTOMAYOR, J.

The Court previously has emphasized that a *Bivens* action may be inappropriate where “Congress has provided an alternative remedy which it explicitly declared to be a substitute for recovery directly under the Constitution and viewed as equally effective.” *Carlson*, 446 U. S., at 18–19 (emphasis deleted). Thus, our cases declining to extend *Bivens* have done so where Congress, sometimes in conjunction with the Executive Branch, provided “comprehensive” and meaningful remedies. *Bush*, 462 U. S., at 388; see also *Schweiker*, 487 U. S., at 414, 423, 428 (emphasizing that the “design” of the “elaborate remedial scheme” in the Social Security disability program “suggests that Congress has provided what it considers adequate remedial mechanisms for constitutional violations that may occur in the course of its administration”); *Malesko*, 534 U. S., at 72 (noting that remedies available to the plaintiff were “at least as great, and in many respects greater, than anything that could be had under *Bivens*”); *Minneeci*, 565 U. S., at 120 (rejecting *Bivens* action for Eighth Amendment violations against employees of a privately operated federal prison because “state tort law authorizes adequate alternative damages actions—actions that provide both significant deterrence and compensation”). By the Court’s logic, however, the existence of any disciplinary framework, even if crafted by the Executive Branch rather

United States.” 28 U. S. C. § 2679(b)(2)(A); see *Wilkie v. Robbins*, 551 U. S. 537, 553 (2007); *Carlson v. Green*, 446 U. S. 14, 20 (1980) (“Congress views FTCA and *Bivens* as parallel, complementary causes of action”); *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68 (2001) (noting that it was “crystal clear” that “Congress intended the FTCA and *Bivens* to serve as parallel and complementary sources of liability” (internal quotation marks omitted)). Just two Terms ago, the Court reaffirmed that by carving out claims “‘brought for . . . violation[s] of the Constitution’” from the FTCA’s “‘exclusive remedy for most claims against Government employees arising out of their official conduct,’” “Congress made clear that it was not attempting to abrogate *Bivens*” and instead “simply left *Bivens* where it found it.” *Hernández v. Mesa*, 589 U. S. —, — — —, and n. 9 (2020) (quoting *Hui*, 559 U. S., at 806; § 2679(b)(2)(A)).